

HOUSE No. 4721

The Commonwealth of Massachusetts

PRESENTED BY:

Leigh Davis and Paul W. Mark

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the board of water commissioners of the Dalton fire district.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>9/24/2025</i>

HOUSE No. 4721

By Representative Davis of Great Barrington and Senator Mark, a joint petition (subject to Joint Rule 12) of Leigh Davis relative to the board of water commissioners of the Dalton fire district. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the board of water commissioners of the Dalton fire district.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 137 of the acts of 1884, as amended by section 1 of chapter 7 of the
2 acts of 1997, is hereby further amended by striking out section 9 and inserting in place thereof
3 the following section:-

4 Section 9. At the meeting of said fire district called for the acceptance of the act, or at any
5 legal meeting called for this purpose, 5 persons shall be elected by ballot to contract for and
6 superintend the construction and completion of the water works, who shall exercise all rights,
7 powers and privileges for that purpose herein granted, subject however to instructions and
8 directions of the fire district, who shall constitute a board of water commissioners. The said
9 commissioners shall be trustees of the sinking fund herein provided for. Said board of
10 commissioners shall have charge of the water works and may fix the price or rent for the use of
11 water, and may exercise all the rights, powers and authority granted to said district by this act
12 relative to such duties, subject however to such instructions, rules and regulations as said district

13 may impose by its vote, and a majority of said board of commissioners shall constitute a quorum
14 for the transaction of business relative to the water works and the sinking fund. Any vacancy
15 occurring in said board of commissioners from any cause may be filled by said district at any
16 legal district meeting, for the unexpired term. The district treasurer and the district clerk of said
17 fire district shall be appointed by said board of water commissioners and shall have all powers
18 and duties vested by law in the offices of the district treasurer and district clerk.

19 SECTION 2. At the next annual meeting of the Dalton fire district following the effective
20 date of this act, the district shall hold an election to fill the positions of 3 members to the board
21 of water commissioners. Of the 3 positions on the board to be filled, 2 members shall be elected
22 for a 3-year term and 1 member shall be elected for a 2-year term. The candidates receiving the
23 first and second highest number of votes shall each be elected to a 3-year term to be filled at the
24 election and the candidate receiving the third highest number of votes shall be elected to a 2-year
25 term to be filled at the election. At each annual meeting of the Dalton fire district thereafter,
26 there shall be 1 or 2 members of the board of water commissioners elected for a 3-year term, so
27 as to maintain a 5 member board. The board of water commissioners shall annually elect a
28 chairperson from among its members. The members of the board of water commissioners in
29 office on the effective date of this act shall serve until the terms for which they have been elected
30 have expired.